

**NEBRASKA DEPARTMENT
OF EDUCATION**

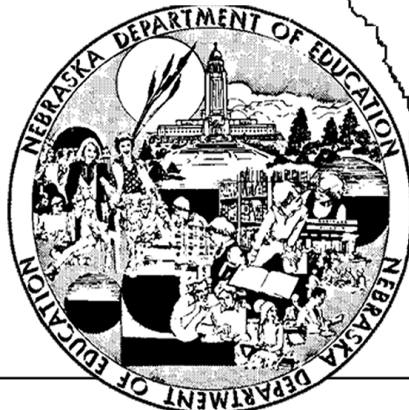
RULE 21

**REGULATIONS FOR THE ISSUANCE OF CERTIFICATES AND PERMITS
TO TEACH, PROVIDE SPECIAL SERVICES, AND ADMINISTER IN
NEBRASKA SCHOOLS**

**TITLE 92, NEBRASKA ADMINISTRATIVE CODE,
CHAPTER 21**

**EFFECTIVE DATE
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**State of Nebraska
Department of Education
P.O. Box 94987
Lincoln, Nebraska 68509**



TITLE 92 - NEBRASKA DEPARTMENT OF EDUCATION
CHAPTER 21 - ISSUANCE OF CERTIFICATES AND PERMITS TO TEACH,
PROVIDE SPECIAL SERVICES, AND ADMINISTER IN
NEBRASKA SCHOOLS

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001 Scope and Authority

001.01 Statutory Authority. This chapter is adopted pursuant to Neb. Rev. Stat. §§ 79-318, 79-806 through 79-815, 79-8,145, 79-8,145.01 and 79-1505.

001.02 Scope and Application. This chapter provides procedures for the issuance of Teaching, Administrative, and Special Services certificates and permits for use in accredited or approved Nebraska school systems. Except as otherwise provided in this subsection (001.02), any certificate or permit issued prior to the effective date of this rule will continue to be governed by the provisions of this chapter and the governing statutes as they existed at the time the certificate or permit was issued. Any certificate or permit valid on the effective date of this act with an August 31 expiration date will be considered valid until September 30 of the same year as the original August 31 expiration date.

001.03 Related Chapters. Throughout this chapter, reference is made to other Nebraska Department of Education regulations that relate to certification. Title 92, Nebraska Administrative Code, Chapter 20 (92 NAC 20), contains regulations for teacher education program approval. Title 92, Nebraska Administrative Code, Chapter 22 (92 NAC 22), contains regulations for the approval of credentialing organizations for teachers. Title 92, Nebraska Administrative Code, Chapter 24 (92 NAC 24), contains regulations relating to endorsements.

002 Definitions. As used in this chapter:

002.01 Administer means to manage or direct one or more of the offices, departments, or services of a Nebraska school system, or a comparable school system in another state;

002.02 Application means, unless otherwise required by the context, the Application for a Nebraska Educator Certificate or Permit Form, found on the Educator Certification website, which is properly signed by the applicant, all professional conduct and professional fitness questions are completed with answers that allow the issuance of a Nebraska certificate or permit under this chapter, is accompanied by the payment of the prescribed fee as provided in section 003.05 of this chapter, and is filed and recorded by the Department;

002.03 Approved program means a teacher education or educator preparation program approved pursuant to 92 NAC 20, approved in another state or country pursuant to standards which are comparable and equivalent to 92 NAC 20, or a program capable of meeting such standards;

002.04 Board means the Nebraska State Board of Education;

002.05 Certificate has the same meaning as in Neb. Rev. Stat. § 79-807;

002.06 Certification Officer means an employee designated by the chief academic officer or unit administrator of each standard institution of higher education with an

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approved program to receive correspondence regarding this chapter from the Department and to provide certified records, reports, and/or recommendations to the Department, as required, for the purpose of certification and/or endorsement;

002.07 Commissioner means the Nebraska Commissioner of Education;

002.08 Comparable and equivalent certificate means an unencumbered certificate, an administrative or special services certificate issued by another state, or a teaching, administrative or special services certificate issued by the U.S. Department of Defense or a foreign country pursuant to standards comparable and equivalent to those in this chapter. The certificate, for the purpose of supporting or justifying the initial issuance of a Nebraska certificate or permit, will be given the same consideration as if it were a Nebraska certificate;

002.09 Content area means college coursework taken by an individual for the purpose of gaining a college recommended endorsement on their Administrative, Teaching or Special Services certificate or permit;

002.10 Department means the Nebraska State Department of Education, which is comprised of the Board and the Commissioner;

002.11 Education-related coursework means any education preparation course from a standard institution of higher education, coursework in an applicant's content area, or human relations training;

002.12 Educational service agency has the same meaning as in 20 U.S.C. § 1401(5). Educational service units are the educational service agencies in Nebraska.

002.13 Employment experiences means work by an individual as an employee (a) in an approved, accredited, or otherwise legally operated school while holding or qualifying to hold an unencumbered certificate or a regular certificate issued by the U.S. Department of Defense or a foreign country based upon the successful completion of an approved program; (b) in postsecondary education; or (c) in a community organization or agency that provides services to students;

002.14 Endorsement means an area of specialization indicated on a certificate issued pursuant to this chapter signifying that the individual has met specific requirements contained in 92 NAC 24;

002.15 Equivalent professional development means (a) structured professional development learning that supports teacher or administrator practices and improvements in student learning outcomes with fifteen (15) contact hours of such professional development verified by a Nebraska school administrator being equivalent to one semester hour or (b) two (2) years of full-time employment as a teacher or administrator being equivalent to three (3) semester hours;

002.16 Faculty member means a person who is employed to teach three credit hours or more per school year in an educator preparation program of a standard institution of higher education;

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002.17 Governing body means the school board of a public school district, a board elected or appointed to provide direction to a nonpublic school, or an individual or corporate owner of a nonpublic school;

002.18 Human relations training has the same meaning as in Neb. Rev. Stat. § 79-807;

002.19 Nebraska school system means an institution that is accredited or approved by the Department to provide instruction at any grade level prekindergarten through grade twelve (12), an educational service unit accredited by the Department, or a special education service agency approved by the Department;

002.20 Permit means restricted authorization issued by the Commissioner to an individual who does not yet meet the qualifications for a regular certificate;

002.21 Postsecondary educational entity means a community college, a state college or university, or a regionally accredited nonprofit private postsecondary educational institution;

002.22 Regular certificate means an Initial, Standard, or Professional Nebraska certificate, or a comparable and equivalent certificate;

002.23 Resident means an individual who has established a home where the individual is habitually present and to which having departed therefrom, intends to return;

002.24 Service provider means an individual or service agency, excluding a school district or approved cooperative, provisionally approved by the Nebraska Department of Education or similar entity in another state;

002.25 Special education training has the same meaning as in Neb. Rev. Stat. § 79-807;

002.26 Standard institution of higher education has the same meaning as in Neb. Rev. Stat. § 79-807;

002.27 Teaching means, but is not limited to, the following responsibilities: (a) The organization and management of the classroom or the physical area in which the learning experiences of pupils take place; (b) the assessment and diagnosis of the individual educational needs of the pupils; (c) the planning, selecting, organizing, prescribing, and directing of the learning experiences of pupils; (d) the planning of teaching strategies and the selection of available materials and equipment to be used; and (e) the evaluation and reporting of student progress;

002.28 Teach or Administer full-time day means any day during which more than three (3) hours is spent teaching or in administration;

002.29 Teach or Administer half-time day means any day during which three (3) hours or less is spent teaching or in administration. For computation under this chapter, two (2) half-time days equal one (1) full-time day; and

002.30 Unencumbered certificate means an unencumbered license as defined in the Interstate Teacher Mobility Compact (Neb. Rev. Stat. § 79-1505, which is a current, valid authorization issued by another state allowing an individual to serve as a

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teacher in P-12 educational settings. An unencumbered license is not a restricted, probationary, provisional, substitute, or temporary credential.

003 General Provisions

003.01 Transcripts. An applicant must submit an official transcript of all college credit earned at a postsecondary institution outside of the state of Nebraska and used to fulfill the requirements of this chapter. Unless an official transcript is specifically required under this chapter for a certificate, permit, or renewal, an official transcript is not required from a Nebraska standard institution of higher education when a certification officer provides a recommendation to the Department for the purpose of certification.

003.02 Application, Good Moral Character, and Lawful Presence. To be issued a certificate or permit, the applicant must complete the application found on the Educator Certification website, be of good moral character, and meet the requirements of lawful presence in the United States as set forth in Neb. Rev. Stat. §§ 4-108 through 4-114, including, if necessary, completion of the United States Citizenship Attestation form, which is also found on the Educator Certification website.

003.03 Armed Forces Extension. Upon application, the Commissioner may extend the term of any certificate or permit of any person who has served in the armed forces of the United States or the spouse of such person as provided in Neb. Rev. Stat. § 79-803.

003.04 False Information. Failure by an applicant to submit accurate information in support of an application is cause for denial or revocation of such certificate or permit.

003.05 Fees. Applicants for a certificate or permit must pay the fees as set by the Commissioner.

003.06 Statement Signed by Certification Officer. A statement signed by a certification officer on forms provided by the Department may be accepted as evidence of completion of the academic requirements for issuance of a certificate or permit pursuant to this chapter or of an endorsement pursuant to 92 NAC 24. A recommended form (Institutional Verification) is available on the Educator Certification website.

003.07 Certificates Issued on The Basis of Equivalency. The Commissioner may issue any certificate or permit provided for herein to an applicant who files with the office of the Commissioner evidence of the required qualifications or of education and experience equivalent to the required qualifications.

003.08 Life or Permanent Certificates. The holder of a Life or Permanent certificate issued by the Department that submits an application seeking additional endorsement(s) shall have the Life or Permanent certificate converted to a Professional certificate.

003.09 Master of Arts in Teaching. The Master of Arts in Teaching (MAT) will be accorded equivalence with a baccalaureate degree when used for initial certification purposes in this chapter.

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003.10 Mental Fitness. To be issued a certificate or permit, an applicant must not have an emotional or mental incapacity to practice the profession as evidenced by a legal adjudication or determination thereof by other lawful means. Such evidence shall be any of the following:

003.10A The applicant is, at the time of the consideration of the applicant's fitness to hold a certificate or permit, a mentally ill and dangerous person under Neb. Rev. Stat. § 71-908 as evidenced by a declaration or order to that effect by a mental health board of this state, or as evidenced by a similar finding by a similar body of another state.

003.10B The applicant is, at the time of the consideration of the applicant's fitness to hold a certificate or permit, a mentally ill individual as defined in Neb. Rev. Stat. § 20-162, or a similar determination has been made by similarly qualified mental health professional(s) of another state.

003.10C The applicant has been declared by a court as mentally incompetent in relation to standing trial for a criminal charge pursuant to Neb. Rev. Stat. §§ 29-1822 or 29-1823, or similar laws of another state, and has not been found by a court to have recovered from such incompetency.

003.10D The applicant has been acquitted of a criminal charge on the basis of a finding of insanity under Neb. Rev. Stat. § 29-2203 or similar laws of another state, unless a court, subsequent to such an acquittal, has found that the applicant is not dangerous to himself, herself, or others by reason of mental illness or defect and has released such person from court ordered treatment pursuant to Neb. Rev. Stat. §§ 29-3702 and 29-3703, or similar laws of another state.

003.10E A court has found the applicant to be an incapacitated person in need of a court appointed guardian pursuant to Neb. Rev. Stat. §§ 30-2601 and 30-2620, or similar laws of another state, and no court order has been entered that the applicant's incapacity has terminated.

003.10F A court has appointed a conservator or made other protective order(s) in relation to the estate and property affairs of the applicant pursuant to Neb. Rev. Stat. § 30-2630 or similar laws of another state, and no court order has been entered that the disability of the applicant has ceased.

003.11 Denied, Suspended, or Revoked Certificates and Convictions. To be issued a certificate or permit, the applicant must not have:

003.11A An application for a certificate denied or currently have a certificate suspended or revoked by another jurisdiction

003.11B Any pending investigations or complaints against any certificate or permit; or

003.11C Any felony conviction, or any misdemeanor conviction involving abuse, neglect, or sexual misconduct as defined in sections 003.13 through 003.16 of this chapter.

003.12 Each applicant who is seeking the first issuance of a Nebraska certificate or permit and who has not been a resident of Nebraska for at least five (5) continuous

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years immediately preceding the date of application, must submit a complete, legible set of the applicant's fingerprints and pay the prescribed fee established by the Board to the Department for processing a criminal history record check.

003.13 Felony Convictions. For purposes of this chapter, felony conviction means any felony offense under the laws of any jurisdiction, including misdemeanor convictions in other jurisdictions that would constitute a felony if committed in Nebraska.

003.14 Misdemeanor Convictions. For purposes of this chapter, a misdemeanor conviction involving abuse, neglect, or sexual misconduct means an offense under the laws of any jurisdiction, which, if committed in Nebraska, would constitute one of the following misdemeanors (with the applicable sections of the Revised Statutes of Nebraska in parentheses):

- 003.14A Abandonment; cruel neglect; harassment of a police animal (28-1009);
- 003.14B Abandonment of Spouse, Child, or Dependent Stepchild (28-705);
- 003.14C Assault (third degree) (28-310);
- 003.14D Child Abuse (28-707);
- 003.14E Child/Vulnerable Adult Contact with Methamphetamine (28-457);
- 003.14F Contributing to the Delinquency of a Child (28-709);
- 003.14G Debauching a Minor (28-805);
- 003.14H Domestic Assault (28-323);
- 003.14I Failure to Report Child Abuse/Neglect (28-717);
- 003.14J False Imprisonment (28-315);
- 003.14K Hazing (28-311.06);
- 003.14L Indecency with an Animal (28-1010);
- 003.14M Intimidation by Phone Call (28-1310);
- 003.14N Obscene Literature Distribution (28-813);
- 003.14O Obscene Motion Picture Show, Admitting Minor (28-809);
- 003.14P Prostitution (28-801);
- 003.14Q Public Indecency (28-806);
- 003.14R Resisting Arrest (28-904), when the conviction involves use or threat of physical force or violence against a police officer;
- 003.14S Sale of Obscene Material to Minor (28-808);
- 003.14T Sexual Assault (third degree) (28-320);
- 003.14U Sexually Explicit Conduct (28-813.01);
- 003.14V Solicitation of Prostitution (28-801.01);
- 003.14W Stalking (28-311.03);
- 003.14X Unlawful Intrusion (28-311.08);
- 003.14Y Violating a Harassment Protection Order (28-311.09);
- 003.14Z Violating a Protection Order (42-924); and
- 003.14AA Violence on a Service Animal (28-1009.01).

003.15 Other Convictions. For purposes of this chapter, in addition to the offenses listed above, felony convictions, and misdemeanor convictions involving abuse, neglect, or sexual misconduct will also include convictions related to such crimes, including (with the applicable sections of the Revised Statutes of Nebraska in parentheses):

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003.15A Accessory to a Felony (28-204);
003.15B Aiding, Abetting, Procuring, or Causing Another to Commit an Offense (28-206);
003.15C Attempt to Commit a Crime (28-201); and
003.15D Criminal Conspiracy (28-202).

003.16 Pardons or Convictions Set Aside. Convictions which have been set aside, nullified, expunged, or pardoned are not to be considered convictions for purposes of this chapter, unless the laws of the jurisdiction of the conviction would allow the conviction to be used as the basis for denial of a certificate or permit to teach, administer, or provide special services in schools. However, the applicant must report such convictions on the Criminal Charges Self-Reporting Form, found on the Educator Certification website, as part of his or her application filed with the Department.

003.17 Withdrawal of Application. An applicant may request in writing that his or her application be withdrawn without refund of any fees submitted. The Department must notify the applicant in writing if the request will be granted. Any request granted by the Department ends consideration of that application and will not be subject to appeal pursuant to this chapter.

003.18 Expiration Dates.

003.18A The expiration date on a valid certificate or permit that was issued by the Department prior to January 1, 1964, is subject to the provisions of Neb. Rev. Stat. § 79-815.

003.18B A Professional Teaching certificate issued prior to July 11, 1977, is valid for the life of the holder unless otherwise provided in section 003.08 of this chapter.

003.18C A Temporary Teaching, Special Services, or Administrative certificate, issued pursuant to section 006.02A of this chapter, expires 180 days after issuance.

003.18D Except as provided in section 003.18A through 003.18C of this chapter, unless another certificate or permit replaces the certificate or permit or another action is taken affecting the certificate or permit, the expiration date for any certificate or permit is September 30 of the calendar year in which the certificate or permit expires. The calendar year in which a certificate or permit expires is:

003.18D1 For (a) a Conditional Administrative, Teaching, or Special Services permit or (b) a Provisional Special Services permit, the first calendar year following the calendar year during which the certificate or permit was issued or renewed;

003.18D2 For (a) an Alternative Teaching certificate, (b) a Temporary Teaching certificate issued pursuant to section 006.02B, 006.02C, or 006.02D of this chapter, or (c) an Alternative Program Administrative or Teaching permit, the second calendar year following the calendar year during which the certificate or permit was issued or renewed;

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003.18D3 For (a) a Nebraska Entry Administrative permit, (b) a Career Education Teaching permit, (c) a Postsecondary Teaching permit, or (d) a Military, Administrative, Teaching, or Special Services permit, the third calendar year following the calendar year during which the certificate or permit was issued or renewed;

003.18D4 For (a) a Standard Teaching, Administrative, or Special Services certificate, (b) an Initial Teaching certificate, (c) a State or Local Substitute Teaching permit, or (d) a Special Services permit, the fifth calendar year following the calendar year during which the certificate or permit was issued or renewed;

003.18D5 For a Life or Permanent Teaching, Administrative, or Special Services certificate issued by another state, for purposes of Nebraska certification, the fifth calendar year after the calendar year in which the applicant's last regular employment as a teacher or administrator occurred under the certificate; and

003.18D6 For a Professional Teaching or Administrative certificate, the tenth calendar year following the calendar year during which the certificate or permit was issued or renewed.

004 Administrative Certificates and Permits

004.01 Administrative Certificates and Permits, Types, General Requirements. The Department may issue Standard or Professional Administrative certificates, and Alternative Program or Nebraska Entry Administrative permits. Each applicant for any such Administrative certificate or permit may, depending on the type of certificate or permit, be required to:

004.01A Qualify for or hold a Nebraska Standard or Professional teaching certificate or a comparable and equivalent certificate;

004.01B Submit evidence of human relations training as defined by this chapter;

004.01C Submit evidence of special education training as defined in this chapter; and

004.01D Qualify for or be eligible to have one or more endorsements to administer pursuant to 92 NAC 24.

004.02 Standard Administrative Certificate. A Standard Administrative certificate is valid for teaching and administration in all Nebraska school systems, except that such certificate is valid for the position of superintendent of schools only if so endorsed.

004.03 Standard Administrative Certificate Requirements. Each applicant for a first Nebraska Standard Administrative certificate must:

004.03A Fulfill the requirements in section 004.01 of this chapter;

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004.03B Have received a Master's degree in Educational Administration or Educational Leadership, or received a subject area Master's degree with completion of additional coursework in an approved program in the area(s) of endorsement sought by the applicant; and

004.03C Within five (5) years prior to the date of application:

004.03C1 Have received six (6) semester hours of graduate coursework recognized in 92 NAC 24 as meeting all or part of the requirements for an Administrative endorsement or equivalent professional development; or

004.03C2 Have administered half-time or more for two (2) consecutive school years in the same accredited, approved, or otherwise legally operated school or educational service agency in another state wherein the applicant qualified for or held a Standard Administrative certificate or its equivalent.

004.04 Professional Administrative Certificate. A Professional Administrative certificate is valid for teaching and administration in all Nebraska school systems, except that such certificate is valid for the position of superintendent of schools only if so endorsed.

004.05 Professional Administrative Certificate Requirements. Each applicant for a Professional Administrative certificate must:

004.05A Fulfill the requirements in section 004.01 of this chapter;

004.05B Hold a Master's Degree;

004.05C Qualify for or hold a Standard Nebraska Teaching Certificate;

004.05D Qualify for or hold a Standard Nebraska Administrative certificate;

004.05E Complete:

004.05E1 A minimum of sixty (60) graduate hours in an approved Educational Administration or Educational Leadership program;

004.05E2 An Educational Specialist or doctorate program; or

004.05E3 A state approved program for the preparation of a Superintendent; and

004.05F Within five (5) years prior to the date of application:

004.05F1 Have received six (6) semester hours of graduate credit for coursework recognized in 92 NAC 24 as meeting all or part of the requirements for an Administrative endorsement; or

004.05F2 Have for two (2) consecutive school years:

004.05F2a Administered in the same accredited, approved, or otherwise legally operated school system or educational service agency;

004.05F2b Been employed as a faculty member in the educator preparation program of a standard institution of higher education as defined in section 002 of this chapter with employment verified by a written

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statement from the administrator of the teacher education preparation program; or

004.05F2c Been employed in the Department.

004.06 Standard and Professional Administrative Certificates. Renewal . Requirements. Each applicant for renewal of a Standard or Professional Administrative certificate must:

004.06A Fulfill the requirements in subsection 004.01A of this chapter;

004.06B Hold or have held a Nebraska Standard or Professional Administrative certificate; and

004.06C Within five (5) years prior to the date of application:

004.06C1 Have administered half-time or more for one (1) school year:

004.06C1a In a Nebraska school system;

004.06C1b In a pre-kindergarten early childhood program which is required by law to employ certificated teachers;

004.06C1c In an accredited, approved, or otherwise legally operated school or educational service agency in another state; or

004.06C1d In a U.S. Department of Defense school system;

004.06C2 Have been employed as a faculty member in the educator preparation program of a standard institution of higher education as defined in section 002 of this chapter with employment verified by a written statement from the administrator of the teacher education preparation program;

004.06C3 Have been employed in the Department; or

004.06C4 Have received six (6) semester hours of graduate coursework or equivalent professional development in areas related to Educational Administration or Educational Leadership taken after the completion of the baccalaureate degree.

004.07 Alternative Program Administrative Permit. An Alternative Program Administrative permit is valid for teaching and administration in all Nebraska school systems, except that such certificate is valid for the position of superintendent of schools only if so endorsed. An Alternative Program Administrative permit may not be renewed.

004.08 Alternative Program Administrative Permit Requirements. Each applicant for an Alternative Program Administrative permit must:

004.08A Fulfill the requirements in subsections 004.01A through 004.01C of this chapter;

004.08B Submit a written request for the issuance of such permit from the superintendent of schools or the governing body of the Nebraska school system in which the applicant intends to administer;

004.08C Submit a signed and dated Alternative Program Administrative Permit form, found on the Educator Certification website.

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004.08D Fulfill the requirements of one of the following pathways:

004.08D1 For pathway one, the applicant must have:

004.08D1a Completed at least fifty (50) percent of the credit hours required for completion of an approved program for the endorsement of curriculum supervisor or principal, or seventy five (75) percent of an approved program for an endorsement as superintendent sought by the applicant; or

004.08D2 For pathway two, the applicant must have:

004.08D2a Completed an approved program at a standard institution of higher education;

004.08D2b Held a regular administrative certificate; and

004.08D2c Prior to the expiration of the Alternative Program Administrative permit, submit an official transcript or other proof showing the completion of six (6) semester hours of graduate coursework or equivalent professional development in the areas of Educational Administration or Educational Leadership taken after the completion of a baccalaureate degree.

004.09 Nebraska Entry Administrative Permits. A Nebraska Entry Administrative permit is valid for administration in the school system, public or private, that requests the issuance of the permit. A Nebraska Entry Administrative permit may not be renewed. No individual may hold a Nebraska Entry Administrative permit for a cumulative total of more than three (3) school years. A Nebraska Entry Administrative permit may be transferred to a different school system pursuant to sections 004.12 and 004.13 of this chapter.

004.10 Nebraska Entry Administrative Permit Requirements. Each applicant for a Nebraska Entry Administrative permit must:

004.10A Fulfill the requirements in subsections 004.01A and 004.01D of this chapter;

004.10B Have received a Master's degree in Educational Administration or Educational Leadership, or received a subject matter Master's degree with completion of additional coursework in an approved program in the area(s) of endorsement sought by the applicant;

004.10C Hold a valid certificate or permit to administer that:

004.10C1 Is currently in force in another state; and

004.10C2 Has been held by the applicant for at least one (1) year;

004.10D Not have any pending investigations or complaints against any certificate or permit to teach or administer held by the applicant;

004.10E Submit a statement signed by a certification officer, or the equivalent in another state, as evidence of completion of the academic requirements for issuance of the applicant's certificate or permit to administer in another state. A

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recommended form (Institutional Verification) is available on the Educator Certification website; and

004.10F Submit a written request for the issuance of a Nebraska Entry Administrative permit to the applicant from the superintendent of schools or the governing body of the school system in which the applicant intends to administer.

004.11 Nebraska Entry Administrative Permit Holder Requirements to Qualify for a Regular Certificate. To qualify for a regular (Standard or Professional) administrative certificate at the expiration of a Nebraska Entry Administrative permit, a permit holder must:

004.11A Fulfill the requirements in subsection 004.01A of this chapter;

004.11B If the permit holder had two (2) or more years of verified administrative experience prior to the issuance of the Nebraska Entry Administrative permit, submit evidence of:

004.11B1 The verified administrative experience that occurred prior to the issuance of the permit; and

004.11B2 Either:

004.11B2a Half-time or more employment as an administrator for three (3) consecutive years while holding a Nebraska Entry Administrative permit in the school system that requested the issuance of the permit; or

004.11B2b Completion of fifteen (15) semester hours of graduate level coursework in the areas related to Educational Administration or Educational Leadership while holding the Nebraska Entry Administrative permit;

004.11C If the permit holder did not have two or more years of verified administrative experience prior to the issuance of the Nebraska Entry Administrative permit, submit evidence of:

004.11C1 Fulfillment of the requirements in subsection 004.01D of this chapter; and

004.11C2 Completion of fifteen (15) semester hours of graduate level coursework in the areas related to Educational Administration or Educational Leadership while holding the Nebraska Entry Administrative permit.

004.12 Nebraska Entry Administrative Permit Holder Transfer to Another School System. A Nebraska Entry Administrative permit holder may apply to transfer the permit to another school system. The transfer of a Nebraska Entry Administrative permit does not change the permit's expiration date or any requirements for a permit holder to subsequently qualify for a standard certificate.

004.13 Nebraska Entry Administrative Permit Holder Transfer to Another School System Requirements. Each Nebraska Entry Administrative permit holder applying to transfer the permit to another school system must:

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004.13A Submit a statement of assurance signed by the permit holder that the permit holder will not abrogate any contract with the original school system if the transfer of the permit is granted; and

004.13B Submit a written request for the transfer of the applicant's Nebraska Entry Administrative permit from the superintendent of schools or the governing body of the school system to which the permit would be transferred and in which the applicant intends to administer.

005 Teaching Certificates and Permits

005.01 Teaching Certificates and Permits. Types. General Requirements. The Department may issue Initial, Alternative, Standard, and Professional Teaching certificates. The Department may also issue Alternative Program, Career Education, Postsecondary, State Substitute, Local Substitute, and Military Teaching permits. Each applicant for any such certificate or permit may, depending on the type of certificate or permit, be required to:

005.01A Submit evidence of human relations training as defined by this chapter;

005.01B Submit evidence of special education training; and

005.01C Submit evidence of qualifying for or be eligible to have placed on a certificate or permit one (1) or more endorsements pursuant to 92 NAC 24.

005.02 Initial Teaching Certificate. An Initial teaching certificate is valid for teaching in all Nebraska school systems.

005.03 Initial Teaching Certificate Requirements. Each applicant for an Initial teaching certificate shall:

005.03A Fulfill the requirements in section 005.01 of this chapter;

005.03B Have received a baccalaureate degree;

005.03C Have completed the academic program requirements of an approved program; and

005.03D Either:

005.03D1 Within five (5) years prior to the date of application, have:

005.03D1a Taught for one (1) school year in an accredited, approved, or otherwise legally operated school or service provider in any state; or

005.03D1b Received six (6) semester hours of college credit in education-related coursework or equivalent professional development; or

005.03D2 Be a person participating in an approved teacher exchange program; or

005.03D3 Hold a comparable and equivalent certificate.

005.04 Initial Teaching Certificate. Renewal. Requirements. Each applicant for renewal of an Initial teaching certificate must:

005.04A Hold or have held a Nebraska Initial teaching certificate; and

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005.04B Either:

005.04B1 Have taught or held a position requiring a certificate half time or more for one (1) school year in an accredited, approved, or otherwise legally operated school or service provider during the past five (5) years; or as a faculty member in a postsecondary educational entity; or

005.04B2 Within five (5) years prior to the date of application, have received six (6) semester hours of coursework or equivalent professional development from a standard institution of higher education in education-related coursework.

005.05 Standard Teaching Certificate. A Standard teaching certificate is valid for teaching in all Nebraska school systems.

005.06 Standard Teaching Certificate Requirements. Each applicant for a Standard teaching certificate must:

005.06A Fulfill the requirements in section 005.01 of this chapter;

005.06B Qualify for or hold a Nebraska Initial teaching certificate or a comparable and equivalent teaching certificate; and

005.06C Within five (5) years prior to the date of application, have:

005.06C1 Taught half-time or more for two (2) consecutive school years while holding a regular certificate:

005.06C1a In a Nebraska school system or service provider;

005.06C1b In an accredited, approved, or otherwise legally operated school, educational service agency, or service provider in another state;

005.06C1c In a U.S. Department of Defense school system;

005.06C1d As a faculty member in a postsecondary educational entity;

005.06C1e In a pre-kindergarten early childhood program which is required by law to employ certificated teachers or which requires its teachers to hold a certificate; or

005.06C1f As a Nebraska certified teacher providing distance learning or dual enrollment instruction to students in a Nebraska school system as defined in Neb. Rev. Stat. § 79-1201.01;

005.06C2 Taught half-time or more for two (2) consecutive school years in a nonpublic school in a state that does not require certification of nonpublic school teachers; or

005.06C3 Been employed by the Department.

005.07 Professional Teaching Certificate. A Professional teaching certificate is valid for teaching in all Nebraska school systems.

005.08 Professional Teaching Certificates Requirements. Each applicant for a Professional teaching certificate must:

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005.08A Fulfill the requirements in section 005.01 of this chapter;

005.08B Qualify for or hold a Nebraska Standard teaching certificate, or a comparable and equivalent certificate, or verify having taught half-time or more for two (2) consecutive years during the period of validity of a regular certificate; and

005.08C Either:

005.08C1 Within ten (10) years prior to the date of application, have received a Master's degree from an approved standard institution of higher education in Curriculum and Instruction, Educational Technology, Special Education, or in the applicant's content area;

005.08C2 Hold current credentials from a credentialing organization approved by the Department pursuant to 92 NAC 22; or

005.08C3 Have received a six (6) year specialist's certificate or a doctorate degree from a standard institution of higher education in an area related to the applicant's content area completed at the Master's degree level.

005.09 Standard and Professional Teaching Certificates. Renewal. Requirements.
Each applicant for renewal of a Standard or Professional teaching certificate must:

005.09A Hold or have held a Nebraska Standard or Professional teaching certificate or a comparable and equivalent certificate; and

005.09B Within five (5) years prior to the date of application, have:

005.09B1 Been employed to teach or administer half-time or more for one (1) school year:

005.09B1a In a Nebraska school system or service provider;

005.09B1b In an accredited, approved, or otherwise legally operated school, educational service agency, or service provider in another state;

005.09B1c In a nonpublic school in a state that does not require certification of nonpublic school teachers;

005.09B1d In a U.S. Department of Defense school system;

005.09B1e As a faculty member in the educator preparation program of a standard institution of higher education with employment verified by a written statement from the administrator of the teacher preparation program;

005.09B1f In a pre-kindergarten early childhood program which is by law required to employ certificated teachers or which requires its teachers to hold a certificate;

005.09B1g As a Nebraska certified teacher providing distance learning or dual enrollment instruction to students in a Nebraska school system as defined in Neb. Rev. Stat. § 79-1201.01; or

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005.09B1h As a Nebraska certified teacher employed by a service provider;

005.09B2 Been employed or contracted by the Department; or

005.09B3 Received six (6) semester hours of credit in education-related coursework or equivalent professional development from a standard institution of higher education.

005.10 Alternative Program Teaching Permit. An Alternative Program teaching permit is issued to applicants who do not meet all requirements for a regular certificate and is valid for teaching in all Nebraska school systems.

005.11 Alternative Program Teaching Permit Requirements. Each applicant for an Alternative Program Teaching permit must:

005.11A Have received a baccalaureate degree;

005.11B Submit a signed and dated Alternative Program Teaching Permit Form, found on the Educator Certification website; and

005.11C Submit a written request for the issuance of such permit from the superintendent of schools or the governing body of the school system in which the applicant intends to teach.

005.12 Alternative Program Teacher Permit Renewal Requirements. Each applicant for renewal of an Alternative Program teacher permit must:

005.12A Fulfill the requirements in section 005.11 of this chapter;

005.12B Submit a transcript documenting completion of at least fifteen (15) semester hours towards completion of a program outlined in subsection 005.11B of this chapter for the current Alternative Program teacher permit; and

005.12C Submit evidence of human relations training as required in subsection 005.01A of this chapter.

005.13 Alternative Teaching Certificate. An Alternative teaching certificate is issued to applicants who have completed an alternative teacher program that meets the requirements of section 005.14 of this chapter. An applicant must participate in a school district clinical experience for the first semester of employment as a teacher under an Alternative Teaching certificate. An Alternative Teaching certificate is valid only for teaching in the subject and educational levels for which the individual has successfully completed an alternative teacher program.

005.14 Alternative Teaching Certificate Requirements. Each applicant for an Alternative Program teaching permit must:

005.14A Have received a baccalaureate degree;

005.14B Have successfully completed an alternative teacher program operated by an organization that:

005.14B1 Operates in at least five states;

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005.14B2 Has operated an alternative teacher certification program for at least ten (10) years; and

005.14B3 Requires candidates to pass a subject area examination and a pedagogy examination to receive a documentation of successful completion of such program.

005.15 Alternative Teaching Certificate Renewal Requirements. To renew an Alternative Teaching certificate, the holder must have completed the requirements of sections 005.13 and 005.14 of this chapter.

005.16 Career Education Teaching Permit. A Career Education teaching permit may be issued to an applicant who does not meet the Nebraska requirements for a regular certificate and shall be valid only in the Nebraska school system requesting the issuance of such permit and only in the career education endorsement areas described in 92 NAC 24.

005.17 Career Education Teaching Permit Requirements. Each applicant for a Career Education teaching permit must:

005.17A Fulfill the requirements in subsections 005.01A and 005.01C of this chapter; and

005.17B Submit verification from the Superintendent of Schools or the governing body of a school system in which the applicant intends to teach. The recommended form (Career Education Permit Verification) is available on the Educator Certification website.

005.18 Career Education Teaching Permit Renewal Requirements. Each applicant for renewal of a Career Education teaching permit must:

005.18A Submit verification for the renewal of such permit from the Superintendent of Schools or the governing body of the school system in which the applicant intends to teach. A recommended form (Career Education Permit Verification) is available on the Educator Certification website; and

005.18B Hold or have held a Nebraska Career Education teaching certificate or permit.

005.19 Postsecondary Teaching Permit. A Postsecondary teaching permit is valid only for teaching courses for college credit offered by a Nebraska postsecondary educational entity that have also been approved for high school credit in Nebraska school systems requesting the delivery of such courses and only in the applicant's postsecondary subject area.

005.20 Postsecondary Teaching Permit Requirements. Each applicant for a Postsecondary teaching permit must:

005.20A Fulfill the requirements in subsection 005.01A of this chapter; and

005.20B Be eligible to teach courses for college credit offered by a Nebraska postsecondary educational entity that have also been approved for high school credit in Nebraska school systems requesting the delivery of such courses as

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documented by the Nebraska postsecondary educational entity. A recommended form (Employment Verification for a Postsecondary Permit) is available on the Educator Certification website.

005.21 Postsecondary Teaching Permit Renewal Requirements. Each applicant for renewal of a Postsecondary teaching permit must:

005.21A Hold or have held a Postsecondary teaching permit;

005.21B Continue to be eligible to teach courses for college credit offered by a Nebraska postsecondary educational entity that have also been approved for high school credit in Nebraska school systems requesting the delivery of such courses as documented by the Nebraska postsecondary educational entity. A recommended form (Employment Verification for a Postsecondary Permit) is available on the Educator Certification website; and

005.21C Within three (3) years prior to the date of application, have:

005.21C1 Taught one (1) or more courses that generate college credit and have been approved for high school credit in Nebraska school systems requesting the delivery of such; or

005.21C2 Received three (3) semester hours of graduate credit in the applicant's postsecondary content area.

005.22 State Substitute Teaching Permit. A State Substitute teaching permit is valid for teaching in all teaching endorsement areas in all Nebraska school systems. A State Substitute permit holder may be employed to teach by a school system only on a non-contractual basis.

005.23 State Substitute Teaching Permit Requirements. Each applicant for a State Substitute teaching permit must:

005.23A Fulfill the requirements in subsection 005.01A of this chapter; and

005.23B Have held a Nebraska regular teaching certificate or a comparable and equivalent certificate in another state that has expired, or qualify for or hold a comparable and equivalent certificate.

005.24 State Substitute Teaching Permit Renewal Requirements. Each applicant for renewal of a State Substitute teaching permit must:

005.24A Within five (5) years prior to the date of application, have taught in one (1) or more school systems for at least fifty (50) full-time days; or

005.24B Within five (5) years prior to the date of application, have received three (3) semester hours of education related coursework.

005.25 Local Substitute Teaching Permit. The Local Substitute teaching permit is valid for substitute teaching in all Nebraska school systems. The permit holder may substitute teach no more than ninety (90) full-time days in the same school system. Additional days may be authorized by the Commissioner upon written request from the Nebraska school system that demonstrates a need for additional days.

005.26 Local Substitute Teaching Permit Requirements. Each applicant for a Local Substitute teaching permit must:

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005.26A Fulfill the requirements in subsection 005.01A of this chapter; and

005.26B Have at least forty-eight (48) semester hours of college credit with credit in education-related coursework.

005.27 Local Substitute Teaching Permit Renewal Requirements. The Local Substitute teaching permit can be renewed upon meeting the requirements in section 005.26 of this chapter.

005.28 Paraprofessional Substitute Teaching Permit. A Paraprofessional Substitute Teaching permit must be requested in writing by a school system for an applicant and is valid for substitute teaching only in the requesting school system. The permit holder may substitute teach no more than forty-five (45) full-time days in a school year and no more than five (5) of those days may be consecutive school days. Additional days may be authorized by the Commissioner upon written request from the Nebraska school system that demonstrates a need for additional days.

005.29 Paraprofessional Substitute Teaching Permit Requirements. Each applicant for a Paraprofessional Substitute Teaching permit must be employed as a paraprofessional or paraeducator in the requesting school system.

005.30 Paraprofessional Substitute Teaching Permit Renewal Requirements. A Paraprofessional Substitute Teaching permit may be renewed upon written request by the requesting school system.

006 Temporary Certificates

006.01 Temporary Certificates, General Provisions Temporary certificates and permits are issued to allow an applicant time to complete the requirements for another certificate or permit. A temporary certificate or permit is valid in all Nebraska school systems. A Temporary certificate or permit is not renewable.

006.02 Temporary Teaching, Special Services, or Administrative Certificate Requirements. Each applicant for a temporary certificate must meet:

006.02A All the requirements for an Administrative, Special Services, or Teaching certificate or permit pursuant to this chapter, except the requirement for human relations training as specified in this chapter;

006.02B The requirements as set forth in subdivision (1)(a) of Neb. Rev. Stat. § 79-8,145 for an applicant who possesses a certificate to teach from another state;

006.02C The requirements as set forth in subdivision (1)(b) of Neb. Rev. Stat. § 79-8,145 for an applicant who has passed an appropriate subject area examination as designated by the Board; or

006.02D The requirements as set forth in subdivision (1)(c) of Neb. Rev. Stat. § 79-8,145 for an applicant who is employed as a paraprofessional or paraeducator.

007 Special Services Certificates and Permits

007.01 Special Services Certificates and Permits, Types, General Requirements. The Department may issue Standard Special Services certificates, Special Services

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permits and Provisional Special Services permits. Each applicant for any such Special Services certificate or permit must submit evidence of human relations training as defined by this chapter.

007.02 Standard Special Services Certificate. A Standard Special Services certificate is valid for working in all Nebraska school systems only in the area of Special Services Endorsements for Audiologist and School Nurse described in 92 NAC 24.

007.03 Standard Special Services Certificate Requirements. Each applicant for a Standard Special Services certificate must have completed the program requirements for an Audiologist or School Nurse endorsement in 92 NAC 24.

007.04 Standard Special Services Certificates Renewal Requirements. Each applicant for the renewal of a Standard Special Services certificate must:

007.04A Fulfill the requirements in section 007.01 of this chapter.

007.05 Special Services Permit. A Special Services permit is valid for coaching in all Nebraska school systems.

007.06 Special Services Permit Requirements. Each applicant for a Special Services permit must:

007.06A Fulfill the requirements in section 007.01 of this chapter; and

007.06B Submit evidence of meeting the requirements for a Special Services Coaching endorsement in 92 NAC 24.

007.07 Special Services Permit Renewal Requirements. Each applicant for the renewal of a Special Services permit must:

007.07A Fulfill the requirements in section 007.01 of this chapter;

007.07B Hold or have held a Standard Special Services certificate with a Coaching endorsement or a Special Services permit; and

007.07C Either:

007.07C1 Within five (5) years prior to the date of application for renewal, have been employed as a coach for at least one (1) year in a Nebraska school system while holding a Standard Special Services certificate with a Coaching endorsement or a Special Services permit; or

007.07C2 Within two (2) years prior to the application for renewal, have completed coursework in first aid, health and safety for coaches, and fundamentals of coaching as set forth in the Special Services Coaching endorsement in 92 NAC 24.

007.08 Provisional Special Services Permit. A Provisional Special Services permit is valid for working only in the Nebraska school system requesting the issuance of such permit and only in the area of the Speech Language Technician endorsement described in 92 NAC 24. A Provisional Special Services permit may be renewed twice for an individual for a total of three (3) years.

007.09 Provisional Special Services Permit Requirements. Each applicant for a Provisional Special Services permit must:

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007.09A Fulfill the requirements in section 007.01 of this chapter;

007.09B Submit a written request for the issuance of such permit from the superintendent of schools or the governing body of the school system in which the applicant intends to work;

007.09C Have a bachelor's degree in Speech Communication Disorders or Speech Language Pathology; and

007.09D Submit a signed and dated statement of intent to pursue admission into a Master's Speech Language pathology program during the period in which such permit is valid.

007.10 Provisional Special Services Permit Renewal Requirements. Each applicant for renewal of a Provisional Special Services permit must:

007.10A First Renewal. Each applicant for a first renewal of a Provisional Special Services permit must:

007.10A1 Fulfill the requirements in section 007.01 of this chapter;

007.10A2 Hold or have held a Nebraska Provisional Special Services permit; and

007.10A3 Submit a signed and dated statement from the institution verifying that the applicant has been admitted into an approved Master's Speech Language Pathology program.

007.10B Second and subsequent renewal. Each applicant for a second or subsequent renewal of a Provisional Special Services permit must:

007.10B1 Fulfill the requirements in section 007.01 of this chapter;

007.10B2 Hold or have held a Nebraska Provisional Special Services permit; and

007.10B3 Submit a signed and dated statement from the institution of the remaining requirements leading to the issuance of a regular endorsement and a transcript documenting six (6) hours completed in the past year in a Master's Speech Language Pathology program.

008 Conditional Permits

008.01 Conditional Permits. A Conditional permit is a temporary authorization to teach, provide special services, or administer.

008.02 Conditional Permit Issuance Requirements. A Conditional permit may be issued while the application is being processed by the Department if the Nebraska school system requests, and the Commissioner determines that the documents and information submitted by the applicant would allow for the issuance of a certificate or permit sought by the applicant pending receipt of any additional documentation.

008.03 Conditional Permits Issuance Requirements When a Criminal History Check is Required and All Other Certification Requirements Have Been Met. An applicant

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for a certificate or permit who is required to submit a complete, legible set of fingerprints is issued a Conditional permit prior to receipt, by the Commissioner, of the criminal history record information check if:

008.03A The Criminal Charges Self-Reporting Form, found on the Educator Certification website, identifies all crimes of which the applicant has been convicted; and

008.03B The Commissioner determines the applicant has good moral character and meets all other requirements for certification.

008.04 Voiding of Conditional Permits. The applicant's Conditional permit is void upon the issuance of a certificate or permit to the applicant or upon a final determination that the applicant does not meet the requirements for issuance of a certificate or permit. For purposes of this chapter, a determination is final upon expiration of the time for which the applicant may appeal a denial as provided in section 010 of this chapter or upon issuance of a final order by the Board regarding an appeal by an applicant.

009 Military Permit

009.01 Military Permit. A Military permit is valid for either teaching, administering, or providing special services in all Nebraska school systems.

009.02 Military Permit Requirements. Each applicant for a Military permit must:

009.02A Hold a valid certificate or permit currently in force in another state to teach, administer, or provide special services;

009.02B Have held such certificate or permit for at least one year;

009.02C Submit evidence of current service in the armed forces of the United States, or evidence of having retired from such service within five (5) years of the date of application. If the applicant is the spouse of active or retired military personnel, the applicant must present the same evidence pertaining to his or her spouse; and

009.02D Submit a U.S. Department of Defense Dependent Identification and Privilege Card establishing the applicant's status as a spouse of a person who is serving on active duty if the applicant is not a current service member in the armed forces of the United States or retired from such service within five (5) years of the date of application.

009.03 The Department must expedite the processing of any application for a STET Military permit submitted by an applicant whose spouse is serving on active duty at the time of such submission. A preliminary military permit must be issued upon submission of any application for a military permit, payment of fees pursuant to section 003.05 of this chapter, and successful completion of the criminal history record information check pursuant to section 003.12 of this chapter. The preliminary military permit will be void upon the issuance of a certificate or permit to the applicant or upon a final determination that the applicant does not meet the requirements for issuance of a certificate or permit.

010 Appeals Procedure

010.01 Notice. The Department notifies in writing an applicant for a certificate, permit, or endorsement if the Department intends to deny an application and provide the reason(s) for the denial.

010.02 Request for Review. The applicant may request in writing a review by the Commissioner within twenty calendar (20) days after receipt of the written notice provided for in section 010.01 of this chapter. Failure of an applicant to request a review by the Commissioner within twenty (20) calendar days after receipt of the notice will be a waiver of any further appeal by the applicant and results in a denial of the certificate, permit, or endorsement. After receipt of the request for review, the Commissioner must:

010.02A Notify the applicant that the Department will issue the certificate, permit, or endorsement being sought;

010.02B Notify the applicant that the application for a certificate, permit, or endorsement is denied; or

010.02C Notify the applicant that the application for a certificate, permit, or endorsement is denied for the reason(s) set forth in the notice and that, as a result of the applicant's failure to request a review pursuant to section 010.02 of this chapter, the applicant has waived any further appeal to the Board regarding the current application.

010.03 Hearings. Within twenty (20) calendar days of receipt of the notice of the Commissioner's denial of the certificate, permit, or endorsement pursuant to subsection 010.02B of this chapter, the applicant may appeal the Commissioner's decision pursuant to 92 NAC 61. If the Board finds that the requirements in this or related chapters have been improperly applied to the applicant or in the case of an applicant whom the Commissioner has rejected due to criminal convictions, that the applicant has good moral character and possesses the moral fitness for teaching, then the Board may direct the Commissioner to issue a certificate or permit to the applicant.

010.04 Guidelines for Review. In considering whether to deny, not issue, or not renew a certificate or permit of an applicant based upon criminal convictions, the Commissioner and the Board shall take into account the following factors in determining moral character and moral fitness to teach:

010.04A The nature of the crime, the facts and circumstances surrounding the applicant's conviction including whether the conduct of the applicant would constitute a crime in Nebraska, the sentence received, and whether the sentence was commuted, set aside, or pardoned;

010.04B The applicant's age at the time of the conduct;

010.04C The recency of the conduct;

010.04D The applicant's positive social contributions since the conduct; and

010.04E The reliability of the information concerning the conduct.

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010.05 Applicants who have failed to request a review pursuant to section 010.02 of this chapter are prohibited from re-applying for any certificate or permit for one year from the date the Commissioner denied the application.

010.06 Applicants who have appealed a denial pursuant to section 010.03 of this chapter and the denial was affirmed by the State Board are prohibited from re-applying for any certificate or permit for one year from the State Board's order.